



Notification Waiver Determination

Australian Venue Co – assets of The Clock Hotel, Surry Hills and The Bank Hotel, Newtown, NSW

Acquisition	AVC Operations Pty Ltd, a subsidiary of Australian Venue Co. Holdings Limited (Australian Venue Co), applied for a notification waiver in respect of its proposed acquisition of substantially all the assets of the businesses trading as The Clock Hotel and The Bank Hotel (including the exclusive right to carry on the businesses in succession of the vendor) from Amalgamated Hotels Pty Limited, as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	17 September 2026

Parties to the Acquisition	Australian Venue Co operates over 200 licensed venues throughout Australia and New Zealand, primarily pubs, as well as bars, clubs and licensed restaurants. Its venues are individually branded and are mostly located in inner-city and metropolitan areas, offering a range of products and services including food, alcoholic and non-alcoholic beverages, function rooms, live entertainment, and gaming facilities. The Clock Hotel is a pub with a rooftop and courtyard, located at 470-474 Crown Street, Surry Hills NSW 2010. The Bank Hotel is a pub with a beer garden and live music offering, located at 324 King Street, Newtown NSW 2042.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition, given: - the increase in Australian Venue Co's share of supply of dining, function and on-premises liquor services at pub-style venues in the local area surrounding The Clock Hotel and The Bank Hotel is estimated to be small - there are alternative pub-style venues which supply dining, function and on-premises liquor services in the local areas surrounding The Clock Hotel and The Bank Hotel respectively.

	The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**